

Act No. 453

[Act No. 453, September 02, 1902]

AN ACT PROVIDING FOR THE PUBLICATION BY THE INSULAR GOVERNMENT OF AN OFFICIAL GAZETTE
TINDER THE GENERAL DIRECTION OF THE DEPARTMENT OF PUBLIC INSTRUCTION.

By authority of the United States, be it enacted by the Philippine Commission, that:

Section 1. The publication by the Insular Government of a periodical to be known as the "Official Gazette," under the general direction of the Department of Public Instruction, is hereby authorized, and there is hereby appropriated, out of any funds in the Insular Treasury not otherwise appropriated, the sum of two thousand Local currency. dollars, local currency, to cover the expense of such publication during the remainder of the present quarter of the fiscal year nineteen hundred and three. 1aшphi1

Section 2. There shall be an editor of the Official Gazette, appointed by the Civil Governor, by and with the consent of the Commission, who shall receive a salary at the rate of one thousand eight hundred dollars per annum, United States currency, payable monthly, and who shall have power, with the approval of the Secretary of Public Instruction, to appoint two clerks, each of whom shall receive a compensation not to exceed at the rate of six hundred dollars per annum. He shall give bond to the Government of the Philippine Archipelago in such amount as may be fixed by the Insular Treasurer, who shall approve the sufficiency of the surety or sureties thereon, and with whom the bond shall be filed and safely kept. It shall be the duty of the editor to receive, collect, and prepare for publication the various laws, orders, decisions, and other public documents which it is designed to publish in the Gazette; to receive subscriptions for the Gazette from private persons, corporations, and provincial and municipal governments; to collect the amounts due for such subscriptions and to deposit the same in the Insular Treasury; to distribute or cause to be distributed copies of the Gazette to the various subscribers; to cause to be made and published an index to the Gazette every six months, and to issue the same as a part of such Gazette; and to perform such other duties in connection with the publication of the Gazette as the Secretary of Public Instruction may direct.

Section 3. The Official Gazette shall be published weekly in two parts, one part in English and the other in Spanish. Each part shall be issued separately and shall contain all legislative acts and all resolutions of a public nature of the Insular Legislature, all executive orders, decisions of the Supreme Court and the Court of Customs Appeals, or abstracts of such decisions, and such other official documents as are usually published in an official gazette which may be designated for publication by the Secretary of Public Instruction or which may be recommended for publication by the editor and approved by the Secretary of Public Instruction.

Section 4. The Official Gazette shall be delivered on subscriptions received at the rate of six dollars, United States currency, per year, payable in advance, and shall be sold at fifteen cents, United States currency, per single copy. Each provincial and municipal government shall subscribe for one copy of such Gazette and pay for the same out of provincial or municipal funds, and such copy shall be tiled and safely kept with the public records of the province or municipality for reference. Subscriptions may be made by the provinces and municipalities for such additional copies of the Gazette for distribution among the provincial or municipal officers as they may deem necessary. One copy shall be deposited with each of the following officers weekly: The Civil Governor, the Secretaries of the several Executive Departments, the members of the Philippine Commission, the justices of the Supreme Court, the judges of the Court of Customs Appeals and of the Courts of First Instance, the Executive Secretary, the Secretary of the Commission, the heads of the various Bureaus and Offices under the Insular Government, and the justices of the peace. These copies shall be the property of the Insular Government, shall remain on file in the respective offices supplied, and shall be turned over by a retiring incumbent to his successor.

Section 5. The public good requiring the speedy enactment of this bill, the passage of the same is hereby expedited in accordance with section two of "An Act prescribing the order of procedure by the Commission in the enactment of laws," passed September twenty-sixth, nineteen hundred.

Section 6. This Act shall take effect on its passage.

Enacted, September 2, 1902.

The Lawphil Project - Arellano Law Foundation